

Amendment No. 1 to HB1817

Howell
Signature of Sponsor

AMEND Senate Bill No. 1748*

House Bill No. 1817

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 55-50-405, is amended by adding the following as a new subsection:

(j)

(1)

(A) The commissioner shall suspend the commercial driver license of a driver who is issued an out-of-service order pursuant to § 65-15-111(g) or is otherwise found to be unable to read and speak the English language sufficiently to converse with the general public, to understand highway traffic signs and signals, to respond to official inquiries, and to make entries on reports and records as required by 49 CFR 391.11(b)(2).

(B) Subdivision (j)(1)(A) does not apply if the driver:

(i) Is unable to speak the English language sufficiently;

(ii) Is capable of reading and writing in the English language; and

(iii) Presents documentation that the driver fails to meet the hearing standard under 49 CFR 391.41(b)(11) and has obtained an exemption from that requirement.

(2) A commercial driver license suspended pursuant to subdivision (j)(1) remains suspended until the driver takes and passes the written commercial driver license test administered in English.

SECTION 2. Tennessee Code Annotated, Section 65-15-111, is amended by adding the following as a new subsection:

(g)

(1) If an enforcement officer determines during the course of a safety inspection that a driver is unable to read and speak the English language sufficiently to converse with the general public, to understand highway traffic signs and signals, to respond to official inquiries, or to make entries on reports and records as required by 49 CFR 391.11(b)(2), then the officer must issue an out-of-service order to the driver that also prevents the vehicle from being operated until a substitute driver who is capable of reading and speaking the English language sufficiently, as required by 49 CFR 391.11(b)(2), is present to operate the vehicle in place of the original driver.

(2) Subdivision (g)(1) does not apply if the driver:

- (A) Is unable to speak the English language sufficiently;
- (B) Is capable of reading and writing in the English language; and
- (C) Presents documentation that the driver fails to meet the hearing standard under 49 CFR 391.41(b)(11) and has obtained an exemption from that requirement.

SECTION 3. This act takes effect ninety (90) days following transmission of written notification by the commissioner of safety to the executive secretary of the Tennessee Code Commission that either legislation is passed by the United States Congress, or a regulation is promulgated by the United States Department of Transportation, that authorizes state action contemplated by this act without jeopardizing receipt of federal funds, the public welfare requiring it. The commissioner of safety shall notify the executive secretary of the Tennessee

Code Commission in writing of the occurrence of such legislation or regulation taking effect only if the commissioner of safety has received written assurances from the Federal Motor Carrier Safety Administration that the state action contemplated by this act will not jeopardize receipt of federal funds to the department of safety or department of transportation.